EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

# DECISION

Application no. 38567/19
Ismayil NADIRLI against Azerbaijan
and 5 other applications
(see appended table)

The European Court of Human Rights (First Section), sitting on 14 December 2023 as a Committee composed of:

Krzysztof Wojtyczek*, President*,
Lətif Hüseynov,
Ivana Jelić*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above applications lodged on the various dates indicated in the appended table,

Having regard to the declarations submitted by the respondent Government requesting the Court to strike the applications out of the list of cases,

Having deliberated, decides as follows:

## FACTS AND PROCEDURE

The applicants' and their representatives' details are set out in the appended table.

The applicants' complaints under Article 11 of the Convention concerning the unlawful or disproportionate measures against organisers and participants of public assemblies were communicated to the Azerbaijani Government ("the Government"). Complaints based on the same facts were also communicated under Article 6 of the Convention.

## THE LAW

Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single decision.

After unsuccessful friendly-settlement negotiations, the Government informed the Court that they proposed to make unilateral declarations with a

view to resolving the issues raised by these complaints. They further requested the Court to strike out the applications in accordance with Article 37 of the Convention.

The Government acknowledged the violation of the applicants' rights guaranteed by the Convention. They offered to pay the applicants the amounts detailed in the appended table and invited the Court to strike the applications out of the list of cases in accordance with Article 37 § 1 (c) of the Convention. The amounts would be converted into the currency of the respondent State at the rate applicable on the date of payment, and would be payable within three months from the date of notification of the Court's decision. In the event of failure to pay these amounts within the above-mentioned three-month period, the Government undertook to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

The payment will constitute the final resolution of the cases.

The applicants were sent the terms of the Government's unilateral declarations several weeks before the date of this decision. The Court has not received a response from the applicants accepting the terms of the declarations.

The Court observes that Article 37 § 1 (c) enables it to strike a case out of its list if:

> "... for any other reason established by the Court, it is no longer justified to continue the examination of the application".

Thus, it may strike out applications under Article 37 § 1 (c) on the basis of a unilateral declaration by a respondent Government even if the applicants wish the examination of the cases to be continued (see, in particular, the *Tahsin Acar v. Turkey* judgment (preliminary objections) [GC], no. 26307/95, §§ 75-77, ECHR 2003-VI).

The Court has established clear and extensive case-law concerning complaints relating to the unlawful or disproportionate measures against organisers and participants of public assemblies (see, for example, *Gafgaz Mammadov v. Azerbaijan,* no. 60259/11, 15 October 2015; *Huseynli and Others v. Azerbaijan,* nos. 67360/11 and 2 others, 11 February 2016; and *Hasanov and Others v. Azerbaijan,* [Committee], nos. 39919/07 and 14 others, 5 September 2019). It has no reasons to consider that the compensation offered by the Government constitutes inadequate or otherwise unreasonable redress for the violation of the applicants' Convention rights (see *Ryabkin and Volokitin* v. Russia (dec.), nos. 52166/08 and 8526/09, §§ 49-50, 28 June 2016, and *Igranov and Others v. Russia*, nos. 42399/13 and 8 others, § 24, 20 March 2018, and, for a similar approach, *Antovski and Others v. North Macedonia* (dec.) [Committee], no. 68160/17, 8 December 2022).

Noting the admissions contained in the Government's declarations as well as the amount of compensation proposed – which is consistent with the amounts awarded in similar cases – the Court considers that it is no longer justified to continue the examination of the applications (Article 37 § 1 (c)).

In the light of the above considerations, the Court is satisfied that respect for human rights as defined in the Convention and the Protocols thereto does not require it to continue the examination of the applications (Article 37 § 1 *in fine*).

Finally, the Court emphasises that, should the Government fail to comply with the terms of their unilateral declarations, the applications may be restored to the list in accordance with Article 37 § 2 of the Convention (see *Josipović v. Serbia* (dec.), no. 18369/07, 4 March 2008).

In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

*Decides* to join the applications;

*Takes note* of the terms of the respondent Government's declarations and of the arrangements for ensuring compliance with the undertakings referred to therein;

*Decides* to strike the applications out of its list of cases in accordance with Article 37 § 1 (c) of the Convention.

Done in English and notified in writing on 18 January 2024.

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| Viktoriya Maradudina<br>Acting Deputy Registrar | Krzysztof Wojtyczek<br>President |

# APPENDIX

## List of applications raising complaints under Article 11 and 6 of the Convention
## (unlawful or disproportionate measures against organisers and participants of public assemblies and unfair trial inadministrative-offence proceedings)

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Date of receipt of Government's declaration | Date of receipt of applicant's comments | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] | Amount awarded for costs and expenses per application (in euros)[2] |
|---|---|---|---|---|---|---|---|
| 1. | 38567/19<br>10/07/2019 | **Ismayil<br>Islam oglu<br>NADIRLI**<br>1995 | Elchin<br>SADIGOV<br>Baku | 17/10/2023 | 02/11/2023 | 2,600 | 250 |
| 2. | 38590/19<br>10/07/2019 | **Mete<br>Seymur oglu<br>TURKSOY**<br>1995 | Elchin<br>SADIGOV<br>Baku | 17/10/2023 | 02/11/2023 | 2,600 | 250 |
| 3. | 38593/19<br>10/07/2019 | **Goshgar<br>Amrah oglu<br>AHMADOV**<br>1997 | Elchin<br>SADIGOV<br>Baku | 17/10/2023 | 02/11/2023 | 2,600 | 250 |
| 4. | 41164/19<br>20/07/2019 | **Bakhtiyar<br>Samaddin oglu<br>MAMMADLI**<br>2000 | Elchin<br>SADIGOV<br>Baku | 17/10/2023 | 02/11/2023 | 2,600 | 250 |
| 5. | 42512/19<br>27/07/2019 | **Orkhan<br>Azar oglu<br>MAMMADOV**<br>1996 | Elchin<br>SADIGOV<br>Baku | 17/10/2023 | 02/11/2023 | 2,600 | 250 |
| 6. | 44646/19<br>07/08/2019 | **Yashar<br>Ilham oglu<br>KHASPOLADOV**<br>1994 | Elchin<br>SADIGOV<br>Baku | 17/10/2023 | 02/11/2023 | 2,600 | 250 |

[1] Plus any tax that may be chargeable to the applicants.
[2] Plus any tax that may be chargeable to the applicants.